

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 12-02

MAHER TERMINALS, LLC

COMPLAINANT

v.

THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY

RESPONDENT

JOINT STATUS REPORT

The Port Authority of New York and New Jersey (the “Port Authority”) and Maher Terminals, LLC (“Maher”) hereby submit this joint status report pursuant to FMC Rule 201(e) and the May 20, 2014 Order Requiring Joint Status Report (“May 20 Order”).

On May 30, 2014, the parties met and conferred telephonically with respect to the following issues set forth in the May 20 Order: (1) identify pending motions and indicate whether those motions are ready for decision, including addressing (a) whether any pending motions or any issues presented in those motions can be withdrawn as resolved by decisions in related cases, and (b) whether additional briefing is required prior to rendering rulings on any pending motion; (2) indicate whether the parties intend to file any additional motions; (3) describe the status of discovery; (4) specify agreements made between the parties to expedite this proceeding, in addition to the agreements to which the parties have previously stipulated; and (5)

propose a schedule. *See* May 20 Order. The parties were able to reach agreement as to certain issues but not as to others during the May 30, 2014 meet and confer.

The parties agreed to exchange their respective positions for this Joint Status Report at 5:00 p.m. on June 4, 2014. Immediately thereafter, and without responding to Maher's submission, or otherwise changing its own submission or Maher's position, the Port Authority agreed to combine Maher's position and its own into a single document for submission to the Presiding Officer in this Joint Status Report.

The Port Authority accordingly sets forth its positions on the status of this action below and incorporates thereafter Maher's status report received at close of business today.

The Port Authority's Positions on the Status of This Action

1. The Pending Motions and Their Readiness for Decision

There are three motions pending in this action: (a) the Port Authority's Motion to Dismiss Maher's Complaint and Request for a Stay filed April 26, 2012 (Doc. No. 7), which Maher opposed on May 11, 2012 (Doc. No. 9); (b) the Port Authority's Motion to Compel Discovery from Complainant filed July 12, 2012 (Doc. No. 13), which Maher opposed on July 31, 2012 (Doc. No. 15), and (c) Maher's Motion to Compel Discovery from Respondent filed September 10, 2012 (Doc. No. 17), which the Port Authority opposed on September 26, 2012 (Doc. No. 18).

The parties agree that none of the pending motions or issues presented therein can be withdrawn as fully resolved based on decisions in related cases. The parties further agree that, except to the extent that the Presiding Officer would find additional briefing helpful, no additional submissions beyond this one should be necessary at this time with respect to the pending motions. The parties likewise agree that the Port Authority's Motion to Dismiss and

Request for a Stay is ready for decision. The parties do not agree, however, on whether the parties' Motions to Compel Discovery are ready for decision now or should be decided after the Motion to Dismiss is resolved and the parties have had the opportunity to assess what, if anything, remains of the case and how any remaining claims can most efficiently be resolved.

The Port Authority maintains its position, set forth in its Motion to Dismiss and Request for a Stay as well as its Status Reports, that further discovery in this action should continue to be held in abeyance until the Motion to Dismiss is decided. PA Mot. to Dismiss at 37-38 (Doc. No. 7); May 14, 2012 PA Status Report at 2-3 (Doc. No. 10). This stay should encompass the Presiding Officer's consideration of each party's pending Motion to Compel Discovery.

As the Port Authority has explained, Maher's 12-02 claims suffer from a variety of fatal threshold defects: For example, some are barred by the statute of limitations, some are barred by a failure to plead either any cause of action or Maher's standing to bring one, and others are collaterally estopped. It is likely that at least some, if not all, of Maher's claims will be dismissed on these grounds when the Presiding Officer decides the Motion to Dismiss. Thus, a stay will likely obviate the need for the Presiding Officer to decide all or some of the Motions to Compel, while protecting the parties from unnecessary and burdensome discovery, as well as inevitable discovery motion practice, regarding vague and wide-ranging claims that soon may be eliminated. The Motions to Compel Discovery would be most efficiently decided, if ever, only after the Presiding Officer has determined which claims and issues, if any, will survive the pleading stage. In the meantime, a stay pending resolution of the Motion to Dismiss will not inflict any hardship because, as the parties agree, the Motion to Dismiss is ripe for decision and the fact that Maher waited many years to bring this action confirms that there is no urgent need to proceed with discovery and the attendant discovery motion practice.

Moreover, for several reasons, maintaining a stay pending the decision on the Motion to Dismiss is even more appropriate now than when the Port Authority initially made its motion. Most importantly, the Presiding Officer's April 25, 2014 decision in the 08-03 and 07-01 actions has now provided valuable guidance with respect to the sufficiency and applicable legal standards governing the claims that are the subject of the Port Authority's Motion to Dismiss. Initial Decision, *Maher v. Port Auth. of N.Y. & N.J.*, Dkt. Nos. 08-03, 07-01 (Apr. 25, 2014) ("08-03 Initial Decision"). Just as the Port Authority anticipated in requesting a stay, PA Mot. to Dismiss at 33-37, the 08-03 Initial Decision provided benchmark articulations of what does—and does not—constitute an unreasonable preference, an unreasonable practice, and an unreasonable refusal to deal under the Shipping Act. *Id.* at 35-59. Measured against these articulations, it is now even clearer that Maher has failed to plead sufficient facts to make out plausible claims under the well-established *Iqbal* and *Twombly* pleading standard.¹

For example, as to unreasonable preference or prejudice claims, the Presiding Officer explained in the 08-03 Initial Decision that "[m]ere differences in treatment alone, however, do not violate the Shipping Act" under *Ceres* and its progeny; that "only *undue or unreasonable* preferences and prejudices would be violative of the Prohibited Acts," such as "a different rate to different users for an identical service"; and, that "[m]aritime leases are rarely for identical property and some variation in rental terms is to be expected." 08-03 Initial Decision at 40. Maher's defense of its four vague unreasonable prejudice claims – that it need only "allege that it

¹ As previously noted, *see* PA Mot. to Dismiss 14 & n.8, the Commission has expressly adopted the *Iqbal/Twombly* pleading standard. *Mitsui O.S.K. Lines Ltd. v. Global Link Logistics, Inc.*, 32 S.R.R. 126, 136 (F.M.C. 2011) (quoting *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 570 (2007), and *Ashcroft v. Iqbal*, 129 S. Ct. 1937, 1949 (2009)); *see also* *Kobel v. Hapag-Lloyd A.G.*, 32 S.R.R. 40, 42-43 (A.L.J. 2011) (Erin M. Wirth, A.L.J.); *DNB Exports LLC & AFI Elektromekanik VE Elektronik San. Tic. Ltd. STI v. Barsan Global Lojistik VE Gumruk Musavirligi A.S.*, 32 S.R.R. 550, 553 (A.L.J. 2011) (Clay G. Guthridge, A.L.J.).

was subjected to different treatment by the respondent and was injured as a result,” Opp’n 17; *see* Compl. ¶¶ V(I)-(K), V(O) (Counts VIII-X, XIV) – is thus foreclosed. As the 08-03 Initial Decision explained, “there is no requirement that leases for different properties contain identical provisions.” 08-03 Initial Decision at 58.

Similarly, as to Maher’s unreasonable practice claims, the 08-03 Initial Decision set forth that, in order to make out even a “*prima facie* violation,” a complainant must show that “the port structures a charge in such a way that the amounts paid by different customers ‘do not bear a reasonable relationship’ to the relative benefits they receive.” 08-03 Initial Decision at 54 (citation omitted). Maher’s argument that it “need only plead that the alleged practice or procedure was unreasonable,” Opp’n 13, does not pass muster under the 08-03 Initial Decision’s statement of the law in light of the applicable *Iqbal/Twombly* pleading standard. *Twombly*, 550 U.S. at 555 (“a formulaic recitation of the elements of a cause of action will not do”). The same is true of Maher’s entirely conclusory unreasonable refusal to deal claims, as to which it contends it need only “allege that a party refused to deal or negotiate and that such refusal was unreasonable.” Opp’n 19; *see* Compl. ¶¶ V(L)-(N) (Counts XI-XIII). As the 08-03 Initial Decision explained, the Port Authority “is not required to continually negotiate the lease with Maher . . . every time a different lease provision was offered” to another marine terminal operator. 08-03 Initial Decision at 55. Again, Maher’s barebones pleading does not pass muster under the *Iqbal/Twombly* standard.

Moreover, the *Iqbal/Twombly* pleading standard and the substantive standards set forth in the 08-03 Initial Decision should be rigorously applied under the circumstances of this case. That is because, as a result of the protracted litigation in the 08-03 action, which raged from 2008 through 2012, Maher had already received voluminous discovery regarding many of the

subjects of this case when it filed its Complaint.² It was against this backdrop that Maher pled its claims in an entirely conclusory fashion that disregards both the *Iqbal/Twombly* pleading standard and the requirements for a Shipping Act claim. Maher certainly does not need—and should not be entitled—to launch into additional blunderbuss discovery in its characteristic litigious fashion until such time as the Presiding Officer determines that it has sufficiently pleaded one or more valid claims for relief.

Once the Motion to Dismiss is decided, the Presiding Officer and the parties can promptly assess what discovery legitimately needs to be taken, if any, based on the Presiding Officer's ruling. The Port Authority respectfully suggests that, at that time, the parties should meet and confer regarding which portions of the pending Motions to Compel still require a ruling, as well as how much discovery is needed on any remaining claims, how it can most efficiently be conducted, and on what schedule.

For example, to the extent that any of Maher's claims survive the Motion to Dismiss, it is possible that any remaining issues may be resolved by proceeding with very narrowly targeted discovery, followed by a prompt motion for summary judgment. Such discovery might be as simple and limited as requiring Maher to provide bona fide and straightforward answers to one or more of the narrow and specific interrogatories that Maher has thus far evaded and that are the

² Indeed, over the course of the 08-03 action, Maher served 208 interrogatories (340 when subparts are counted) in twelve, mostly successive sets, as well as 127 document requests (158 when subparts are counted) served in eleven, mostly successive sets. In response, the Port Authority produced over two million pages of documents and more than 250 pages of interrogatory responses at enormous cost, which addressed a wide range of topics relevant to the 12-02 Complaint including, among other things, Maher's allegations regarding the Port Authority's change of control practices, APM's deferral of its leasehold obligations, and APM's use of construction financing.

subject of the Port Authority's pending Motion to Compel.³ The Port Authority believes that those answers would likely remove any doubt that any remaining claims are meritless as a matter of law on such threshold grounds as lack of standing or the statute of limitations.⁴ This kind of limited and targeted discovery could therefore eliminate meritless claims with a minimum of wear and tear on the parties and the Presiding Officer. The Federal Rules expressly provide for this type of phased discovery, and federal courts have repeatedly upheld its use to resolve threshold issues in an efficient manner before imposing the burden of full-blown discovery upon the parties and tribunal.⁵ See Fed. R. Civ. P. 26(f)(3)(B) (the parties' discovery plan must set

³ Despite supplementing its interrogatory responses, Maher continues to withhold straightforward answers to several of the Port Authority's interrogatories. For example, Maher has not (i) identified the dates on which it allegedly requested parity with MSC-PNCT or the persons to whom such requests were made in response to Interrogatory No. 18; or (ii) identified any provisions in its own lease that constitute unreasonable general releases or waivers, liquidated damages provisions, or lease rate renewal/extension provisions in response to Interrogatory No. 23; or (iii) described how it was injured by any such provisions in other marine terminal operators' leases in response to Interrogatory No. 24. See Port Authority's First Set of Interrogs. No. 18, 23, 24; see also Maher's Amended & Supplemental Resp. to Port Authority's First Set of Interrogs. at 36-37 (Response to No. 18), 38 (Response to No. 23), 40 (Response to No. 24). Maher's failure to answer these simple and obviously relevant interrogatories was hardly accidental. The Port Authority believes that the answers to targeted questions like these will lead to the dismissal of any claims that survive the pending Motion to Dismiss.

⁴ For example, the Port Authority believes that truthful answers from Maher to Interrogatories Nos. 23 and 24 regarding whether any of the allegedly unreasonable lease provisions are contained in its own lease, and how Maher has been injured by such provisions in other leases, would dispose of Maher's unreasonable lease provision claims for lack of standing. As another example, the Port Authority believes that truthful answers to Interrogatory No. 18 regarding when and to whom Maher made its requests for parity with MSC-PNCT will eliminate in whole or in part Maher's claims in connection therewith.

⁵ See, e.g., *Unwired Planet, LLC v. Square, Inc.*, No. 3:13-cv-00579-RCJ-WGC, 2014 WL 1159833, at *2 (D. Nev. Mar. 17, 2014) ("Phasing discovery in this case is consistent with Federal Rule of Civil Procedure 1, which states that the rules 'should be construed and administered to secure the just, speedy, and inexpensive determination of every action and proceeding.'"); *Pipes v. Life Investors Ins. Co. of Am.*, 254 F.R.D. 544, 552 n.5 (E.D. Ark. 2008) (noting that "Phase One" of discovery was limited to "matters relevant to the class action requirements of" Rule 23); *Graff v. Subbiah Cardiology Assocs., Ltd.* Civ. No. 08-207, 2008 WL 2312671, at *2 (W.D. Pa. June 4, 2008) (directing preparation of a schedule for "phased fact

forth, *inter alia*, “whether discovery should be conducted in phases or be limited to or focused on particular issues”); 46 C.F.R. § 502.12.⁶

Particularly given the vague and conclusory nature of Maher’s pleadings—despite all of the discovery it has already received—narrowly-targeted, phased discovery initially focused on ascertaining whether Maher’s claims can satisfy threshold criteria may well be appropriate in this action, but the best time to make that determination would seem to be after the ruling on the pending Motion to Dismiss.

2. The Parties’ Intent to File Additional Motions

The parties agree that they do not intend to file any additional motions at this time.

If any part of this action survives the Motion to Dismiss, the Port Authority reserves the right to file any necessary discovery or summary judgment motions at a later time.

3. The Status of Discovery

The parties agree that, in summary, the discovery status in this action stands as follows: Each party served its first request for production of documents and first set of interrogatories, each party responded to the other side’s requests, each side filed a motion to compel based on the other side’s responses, and neither party has produced documents.

As explained in Section 1 above, the Port Authority has always maintained that discovery should be stayed in this action until the Motion to Dismiss is decided. On May 7, 2012,

discovery” “initially limited” to threshold issue of whether defendant was an employer under Title VII).

⁶ The Commission has held that the application of the Federal Rules to Commission proceedings is “especially relevant as regards discovery processes” and that Rule 26, in particular, provides “beneficial devices that help move the discovery phase to a more prompt conclusion.” *CTM Int’l, Inc. v. Medtech Enters., Inc. & Mr. Xin Liu*, Dkt. No. 98-07, 1998 WL 942103, at *1 (A.L.J. Aug. 24, 1998); see also *Possible Unfiled Agreement Among A.P. Moller-Maersk Line, P&O Nedlloyd Ltd. & Sea-Land Serv., Inc.*, Dkt. No. 97-08, 1998 WL 940873, at *2 (A.L.J. Aug. 3, 1998) (applying Rule 26(b)(1) during discovery process in Commission proceeding).

however, out of an abundance of caution and without waiving any of its rights, the Port Authority served initial responses to Maher's first set of interrogatories and document requests, which the Port Authority received together with the Complaint before an Initial Order was entered. On May 7, 2012, the Port Authority also served its first set of interrogatories and document requests to preserve its rights.

On June 6, 2012, Maher served its responses to the Port Authority's discovery requests but did not produce any documents or provide any indication of when it intended to do so. The interrogatory responses Maher provided failed almost entirely to set forth the principal and material facts, and instead merely repeated the conclusory allegations of the Complaint. Of particular importance, Maher refused to provide genuine answers to a number of narrow interrogatories specifically phrased to ascertain the timeliness of its claims and its standing to bring them, among other threshold concerns. *See* nn. 3-4 *supra*. The Port Authority, after sending a deficiency letter, informed Maher and the Commission in a Status Report filed June 15, 2012 that, given Maher's own refusal to provide sufficient interrogatory responses and refusal to produce any documents, the Port Authority would await decision on its Motion to Stay before producing documents. *See* Doc. No. 12 at 3. Maher, after initially agreeing to revisit its interrogatory responses, thereafter refused to supplement them. The Port Authority filed its Motion to Compel Discovery on July 12, 2012. On July 27, 2012, Maher filed its opposition and only then served amended and supplemental interrogatory responses.

Meanwhile, on June 20, 2012, Maher objected to alleged deficiencies in the Port Authority's interrogatory responses. The Port Authority promptly assessed Maher's complaints and served amended and supplemental responses on July 12, 2012. Two months later, on

September 10, 2012, Maher filed a Motion to Compel Discovery challenging those responses. The Port Authority opposed Maher's motion on September 25, 2012.

4. Agreements Between the Parties to Expedite This Proceeding

In order to expedite this proceeding, the parties previously reached an agreement that the documents produced in discovery in the actions at dockets 08-03 and 07-01 can be used in this proceeding, as set forth in the Port Authority's Status Report filed May 14, 2012. *See* Doc No. 10 at 1-2. The parties also previously reached agreement on the language of a proposed protective order, and the Port Authority requested that the order be entered. *See id.* at 2. That request remains pending.

At the May 30, 2014, meet and confer, Maher's counsel additionally suggested that the parties agree that all documents produced in Maher's federal action against the Port Authority, pending in the United States District Court for the District of New Jersey, can be used in this proceeding. *See Maher Terminals, LLC v. Port Auth. of N.Y. & N.J.*, Civ. No. 12 CV 6090 (KM) (MAH) (D.N.J.). The Port Authority is willing to agree to this proposal subject to the terms of its proposed protective order in the District of New Jersey action and upon the entry of that protective order, as well as the entry of the parties' proposed protective order in this action. *See* Doc No. 10 at 2 & Ex. A (Protective Order).

The parties have not made any additional agreements. At the meet and confer of May 30, 2014, Maher's counsel also suggested that the Port Authority provide Maher with all documents produced in the completely unrelated Cargo Facility Charge ("CFC") litigation, *Hanjin Shipping Co., Ltd. v. Port Auth. of N.Y. & N.J.*, Dkt. No. 11-12 (F.M.C.). The Port Authority's position is that there is no legitimate basis for such a request. Nor would such a production reduce any discovery burden. Maher is not a party to the CFC litigation, which solely concerns a Cargo

Facility Charge user fee that is charged to carriers—and that Maher does not pay. Thus, the CFC production features a wealth of information that is entirely irrelevant to this action and to which Maher simply is not entitled.⁷

5. Proposed Schedule

The parties have not reached agreement regarding the discovery schedule. The Port Authority's position is as follows:

As explained above in Section 1, the Port Authority maintains that discovery, and the decisions on the pending Motions to Compel, should be stayed until the Presiding Officer decides the Motion to Dismiss. Moreover, as explained above, *see* p. 6 *supra*, in the event that any of Maher's claims survive, the Port Authority proposes that the parties meet and confer regarding how this action can proceed most efficiently and in a manner that is fair to both of the parties and consistent with considerations of judicial economy. The parties should then submit a joint status report to the Presiding Officer concerning the status and continuing relevance of the discovery motions, along with a proposed discovery plan and briefing schedule, within ten days of the ruling on the Motion to Dismiss.

If the Presiding Officer declines to adopt this approach, the Port Authority proposes, in the alternative, the following discovery schedule:

Deadline From Motion to Dismiss Decision	Description
10 days after MTD decision	The Port Authority serves its Answer to the Complaint pursuant to 46 C.F.R. § 502.62(b)(1).

⁷ The enormous effort that would be required for the Port Authority to review the CFC production and remove all non-responsive documents—which would be the bulk of them—would significantly increase the Port Authority's discovery burden, not reduce it. To the extent some small number of CFC documents may be marginally relevant here, those documents would be collected far more efficiently through the Port Authority's response to discovery requests in *this action*, if any part of it survives the Motion to Dismiss.

Deadline From Motion to Dismiss Decision	Description
120 days after MTD decision	Fact discovery closes, and Maher designates expert witnesses and the topics on which they will testify.
30 days after close of fact discovery	Maher produces expert reports.
90 days after close of fact discovery	The Port Authority designates expert witnesses and produces expert reports.
120 days after close of fact discovery	Maher produces rebuttal reports.
150 days after close of fact discovery	Parties conduct and complete expert witness depositions.
160 days after close of fact discovery	Parties meet and confer regarding any dispositive motions to be filed and submit a joint status report identifying any motions to be filed and proposing a briefing schedule.

With respect to the foregoing proposed schedule, it is important to emphasize that the Port Authority have adequate time to identify and work with experts in the appropriate areas in response to the expert reports served by Maher, which is why the Port Authority's proposal requires that Maher give notice of the names and topics of its experts thirty days before actually serving its reports, and provides sixty days thereafter for the Port Authority to serve its expert reports. As of now, the Port Authority has no idea even of the topics on which Maher might submit expert reports, and accordingly has no way of anticipating whom to engage at this time.

Finally, the Port Authority does not agree to Maher's proposal that the parties should categorically agree now to refrain from issuing third-party subpoenas. Maher's proposal is premature at this early stage of litigation, and the Port Authority doubts that it would be amenable to such an agreement in any event given that various third parties may be critical witnesses if this case proceeds—including former officers of Maher during the time period covered by the Complaint and the multiple third parties that figure prominently in Maher's Complaint. However, the Port Authority is prepared to revisit the issue at an appropriate stage, if any part of this action survives the Motion to Dismiss.

Maher's Positions on the Status of This Action

The first paragraph of the Order states that “[i]f any issues raised in pending motions have been resolved, they should be withdrawn.” Maher’s position is that the PANYNJ’s pending motions should be withdrawn. As set forth in Maher’s replies, PANYNJ’s motions are frivolous. The first paragraph of the Order also states that “[i]f additional briefing is required prior to rendering rulings on any of the pending motions, a request should be made for additional briefing.” In this regard, Maher’s position is that no additional briefing is warranted. The Order then directs the Parties to submit a proposed schedule. Maher’s proposed schedule mirrors that previously submitted in May 2012, but modified to account for the submission date mandated by the Order and providing current dates:

July 7, 2014	Respondent must Answer the Complaint, issue discovery requests, and respond to Complainant’s initial discovery requests.
August 6, 2014	Complainant responds to Respondent’s initial discovery requests. The Parties are ordered to respond to discovery requests within 30 days of service.
August 27, 2014- November 28, 2014	Depositions of fact witnesses. The Parties may by agreement conduct depositions of fact witnesses after November 28, 2014. Also, a party may seek leave for additional time for fact discovery and depositions of fact witnesses and the postponement of other deadlines, including regarding experts, as warranted by the circumstances, e.g. for subpoenas of third-party evidence.
December 29, 2014	Complainant designates affirmative expert witnesses and produces expert reports.
January 28, 2015	Respondent designates affirmative and rebuttal expert witnesses and produces expert reports.
February 28, 2015	Complainant designates rebuttal expert witnesses and produces rebuttal expert reports.
March 21, 2015- April 8, 2015	Depositions of expert witnesses.

The Order reminded the Parties that “the Commission has set October 8, 2014, as the deadline for an Initial Decision in this proceeding.” However, the Commission has previously

extended this date and considering the circumstances, Maher's position is that the Commission should extend this deadline too.

The Order's second paragraph directs the Parties to address additional matters and Maher's position is as follows:

- (1) Identify pending motions and indicate whether those motions are ready for decision:

The pending motions are PANYNJ's motion to dismiss, PANYNJ's motion to compel discovery, and Maher's motion to compel discovery.

- (2) Indicate whether the Parties intend to file any additional motions:

Maher does not currently intend to file additional motions, however, circumstances regarding discovery may warrant them.

- (3) Describe the status of discovery:

The status of discovery is more fully set forth in the respective motions and replies by the Parties with respect to compelling discovery. However, succinctly put, PANYNJ refused to produce documents and failed to properly respond to Maher's interrogatories. Considering PANYNJ's refusal to produce documents, Maher committed to produce its documents once PANYNJ has produced documents.

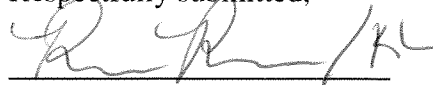
- (4) Specify agreements made between the Parties to expedite this proceeding, in addition to the agreements to which the Parties have previously stipulated:

Maher proposed that discovery in the litigation between the Parties before the United States District Court for the District of New Jersey, *Maher Terminals, LLC*

v. *The Port Authority of New York and New Jersey*, Civ. A. No. 12-6090 (KM), may be used in this proceeding. PANYNJ committed to get back to Maher regarding this proposal but has not yet done so.

Dated: June 4, 2014

Respectfully submitted,

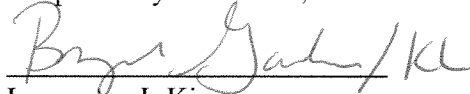
Handwritten signature of Richard A. Rothman and Kevin F. Meade, with initials 'KL' to the right.

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document upon the persons listed below in the matter indicated, a copy to each such person.

Via Federal Express and E-mail:

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Dated at New York, New York
this 4th day of June, 2014



Kami Lizarraga